

# RPI Outdoor Programs

## Assumption of Risk | Informed Consent | Release

### Introduction

**PLEASE READ CAREFULLY!** This document must be read and signed by all participants prior to participation. For participants under 18 years of age, at least one parental or guardian signature is required in addition to the participant's signature. If, after reviewing this document, you have any questions concerning the RPI Outdoor Programs (OP) or need further clarification regarding the legal commitment this document represents, speak with the RPI Outdoor Programs staff before signing.

RPI OP's instruction, education and/or outdoor activities (referred to in this Document as 'activities') include but are not limited to the following: hiking, backpacking, camping, whitewater and flatwater canoeing, caving, rock climbing, mountaineering, swimming, winter wilderness living, back country living skills, facility maintenance, orienteering, whitewater and flatwater kayaking, mountain biking, rappelling, rafting, ropes course, rescue techniques, sailing, skiing, trail work, wilderness medical training, wilderness survival, and transportation or travel to and from 'activities', challenge courses, and climbing walls. These activities (whether scheduled or unscheduled, supervised or unsupervised and/or occurring during free time) inherently feature elements of risk, hazards and dangers (referred to in this Document as 'risk') that may result in loss of property, personal injury/trauma, illness, disability, paralysis, and death to participants and others (referred to in this Document as 'loss'). Such activities may be conducted by RPI OP trip leaders and assistant trip leaders, volunteers, representatives, and contractors (referred to in this Document as 'staff') using locations, contracted services and/or equipment not controlled by Rensselaer Polytechnic Institute.

Participation in these activities is voluntary. It is the responsibility of the participant to refrain from any activity that is deemed unsafe or undesirable. It is also the responsibility of the participant to engage in activities according to his/her/their physical conditioning and skill level.

### Acknowledgement of Risk

While precautions are taken to manage risks, it is impossible to always eliminate or reduce all risks. Not only may outdoor activities result in loss, but they may also result in serious impairment of my future abilities to earn a living, engage in other business, social and recreational activities, and generally enjoy life.

Possible risks associated with outdoor adventure activities include, but are not limited to:

- exposure to weather (including but not limited to: rain, snow, ice, heat, cold, lightning, storms, flooding and drought)
- natural hazards/conditions (including but not limited to: rock fall, uneven ground, unstable surfaces, allergic reaction to vegetation/insects, rapids, foot entrapment, and animal encounters)
- exposure to natural and man-made fire
- physical injury/illness (including but not limited to: drowning, falling, disorientation, loss of consciousness, heat exhaustion, heat stroke, hypothermia, frostbite, gastrointestinal disorders, overexertion, dehydration, hyponatremia, bone fractures, joint and muscle sprains and strains, cuts, abrasions, lacerations, and burns)
- mental or emotional trauma
- equipment failure (personal and/or institutional)
- misjudgments by staff, participants, or others
- delays in transportation or medical care

Staff and co-Staff may misjudge a participant's capabilities, health, or fitness level, or misjudge some aspects of instruction, medical treatment, weather, terrain, water level, or route location. Equipment may fail or malfunction, despite reasonable maintenance and use. By agreeing to participate in any RPI OP activity, I acknowledge understanding and acceptance of these risks.

### Assumption of Risk and Release of Liability

- I, the undersigned, understand that participation in RPI OP activity may entail unavoidable risks, and I accept these risks. I understand that I can help manage these risks to myself and others through my actions, and I agree to listen to staff so they can prepare me to face these risks.
- I accept that I am under no obligation to participate in any activity that makes me feel unsafe. I have the right not to participate in any activity, and that I may remove myself from the activity at any time.
- I understand that I am responsible for my own decision-making and subsequent actions.
- I AGREE TO OBEY ALL TRIP SAFETY GUIDELINES.
- I further accept Rensselaer Polytechnic Institute carries no medical insurance for the protection of participants involved in RPI OP activities. I assert that I am responsible for my own medical insurance, and that I have medical coverage at the time of participation.

### Agreement of Release and Indemnity

I hereby agree to release and hold harmless Rensselaer Polytechnic Institute and its officers, trustees, agents, and staff (referred to in this Document as 'released parties') from all claims, except claims of gross negligence or intentionally wrongful conduct, which are in any way associated with my participation, or the minor for whom I sign, in this activity. I further agree to indemnify ("indemnify" meaning to defend, and to pay or reimburse) released parties against any claim by a member of my, or the child's, family, a rescuer, co-participant, or any other person, arising in whole or part from an injury or other loss suffered or caused by me, or by the minor child, in connection with an activity of Rensselaer Polytechnic Institute. These agreements of release and indemnity are intended to be enforced to the fullest extent permitted by law.

In the event that I file a lawsuit against Rensselaer Polytechnic Institute, I agree to do so solely in the state of New York, and I further agree that the substantive law of New York shall apply in that action without regard to the conflict of law rules of that state. I agree that if any portion of this agreement is found to be void or unenforceable, the remaining document shall remain in full force and effect.

### Other Provisions

Rensselaer Polytechnic Institute and/or its Outdoor Programs, including the Rensselaer Outing Club, reserves the right to remove any participant from an activity and/or program who staff believes, in their discretion, presents a safety concern or medical risk, is disruptive, or acts in any manner detrimental to the program or activity. If a participant is dismissed or departs for any reason, the participant (and his/her family) is responsible for all costs of early departure whether for medical reasons, dismissal, personal emergencies or otherwise. These costs include but are not limited to medical evacuation and treatment; plane, train, bus, or taxi fare; accommodations and other travel expenses; and costs and compensation for staff accompanying participant.

Participant and parent(s) or guardian(s) of a minor participant agree: I have carefully read, understand and voluntarily sign this document and acknowledge that it shall be effective and binding upon me, my minor children and other family members, and my heirs, executors, representatives and estate. One or both parent(s) or guardian(s) must sign below for any participating minor (those under 18 years of age).

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Participant Signature

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Date

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Print Name

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Parent/Guardian Signature  
(if under 18 years of age)

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Date

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Print Name



Rensselaer

DIVISION OF STUDENT LIFE